

Court No. - 39

Case :- WRIT - C No. - 30486 of 2021

Petitioner :- Chandra Prakash Saraswat

Respondent :- Managing Director And 2 Others

Counsel for Petitioner :- Indra Raj

Counsel for Respondent :- Baleshwar Chaturvedi, Ankur Tondon

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Krishan Pahal, J.

A request for adjournment has been made on behalf of the learned counsel for the petitioner.

Sri Gaurav Tripathi learned Advocate has put in appearance on behalf of respondent. He states that the petitioner has not given complete description of the electricity dues in the writ petition.

Let this matter be posted for 10th December, 2021 as fresh.

By the next date fixed, the petitioner may file a supplementary affidavit.

Order Date :- 25.11.2021

Brijesh

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Respondent :- Managing Director And 2 Others

Counsel for Petitioner :- Indra Raj

Counsel for Respondent :- Baleshwar Chaturvedi, Ankur Tondon, Gaurav Tripathi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Krishan Pahal, J.

Heard learned counsel for the petitioner, Sri Gaurav Tripathi learned Advocate for the respondent no. 3 and Sri Baleshwar Chaturvedi learned Advocate has put in appearance for the respondent no. 2.

Written instructions supplied by Sri Gaurav Tripathi learned counsel for the respondent no. 3 are taken on record.

The written instructions supplied by him record that dues approximately 15 lacs towards electricity consumption are outstanding with regard to the property in question which was jointly owned by the petitioner alongwith his two brothers namely the House No. 6C/25, Azad Nagar, Gali No. 3, Khandari, Agra.

It is further demonstrated that the electricity dues to the tune of Rs. 15 lacs and odd had been determined prior to April, 2019 when partition had arrived between the co-owners.

It is further demonstrated by the learned Advocate for the respondent no. 3 that the co-owners of the property in question went to the Consumer Forum, Agra challenging the bills drawn by the department. Their application was disposed of vide order dated 20th December, 2016. The Consumer Forum had issued direction to the respondent to furnish the revised bill.

Despite direction issued by the Consumer Forum, the outstanding dues had not been deposited though revised bill had been furnished by the respondents in terms of the order of the Consumer Forum.

All these facts had been recorded in the judgment and order dated 13.2.2019 passed by this Court in Writ-C No. 5105 of 2019 (Pawanesh Sarswat vs. State of U.P. and 3 others) filed by another brother, one of the co-owner of the property in question.

The record further indicates that repeated writ petitions have been filed by the co-owners challenging the action of the department in not providing the electricity connection to them.

The above noted writ petition was dismissed with the cost on account of being second writ petition for the same cause of action. The petitioner herein though stated that the property in question has been divided and now he is in possession of the portion of the property which came in his share but has not been disclosed the proceeding drawn before the Consumer Forum. There is no detail in the writ petition regarding the outstanding bill and the repeated litigations drawn by the co-owners (including the petitioner herein) of the house in question.

In any case, the petitioner is liable to clear outstanding dues of the premises in question, for the sub-divided premises in question which came in his share due to partition arrived in April, 2019, in view of clause 4.3(h) of the U.P. Electricity Supply Code, 2005.

The prayer in the present writ petition is to issue mandamus commanding the respondent no. 3 to consider the claim of the petitioner for providing domestic electricity connection in the name of the petitioner with regard to the house in question.

From the facts noted above, it is evident that the present writ petition has been filed by concealment of material facts which are well within the knowledge of the petitioner herein.

The present writ petition, thus, is a sheer abuse of the process of the Court, For wasting precious time of the Court by bringing incorrect and incomplete facts on record, we propose to dismiss the writ petition with the cost of Rs. 10,000/- which is to be deposited by the petitioner before the Registrar General, High Court, Allahabad within a period of three weeks from today.

The cost so deposited shall be transmitted in the accounts of the High Court Legal Services Committee.

The writ petition is, accordingly, **dismissed**.

Order Date :- 10.12.2021

Brijesh